

Nasreen Begum v. State of U.P.

Allahabad High Court · Division Bench · 30 May 2022 · WRIT - C No. 6107 of 2022 · **Writ disposed; liberty to object under clause 6.5; coercive action stayed eight weeks.**

HEADNOTE

A consumer's writ to quash a distribution licensee's demand-cum-recovery notice was disposed of without examining merits. On the licensee's statement that an objection would be decided in a time-bound manner, the Court relegated the petitioner to an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer, with a short stay of coercive recovery.

FACTUAL SUMMARY

Nasreen Begum petitioned the Allahabad High Court for certiorari to quash a demand notice and recovery order dated 18 September 2021 issued by the Executive Engineer, Electricity Supply Division-1, Dakshinanchal Vidyut Vitran Nigam Limited, Etawah. Counsel for the distribution licensee stated on instructions that she could file an objection to the impugned demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

objection to disputed demand before Executive Engineer

HOLDING

Without expressing any opinion on merits, a writ challenging a demand/recovery notice is disposed of with liberty to submit an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer within four weeks; if so submitted, the objection shall be decided in accordance with law within the next four weeks after reasonable opportunity of hearing, and no coercive action shall be taken on the demand for eight weeks or till disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ to quash the demand/recovery notice was disposed of by relegating the consumer to the clause 6.5 objection before the Executive Engineer rather than examining the bill in certiorari. ¶ 1

clause-6.5-statutory-remedy-disputed-bill Para 6.5 was treated as the statutory forum for objecting to the impugned demand of the distribution licensee. ¶ 1

clause-6.5-representation-executive-engineer The objection was directed to respondent No. 3, the Executive Engineer who had issued the demand, to be decided after hearing within a fixed period. ¶ 1

billing-objection-to-executive-engineer-under-6.5 The Court, on the licensee's statement, granted liberty to file a clause 6.5 objection to the 18.09.2021 demand and stayed coercive recovery pending that process. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE DEMAND NOTICE/RECOVERY ORDER DATED 18.09.2021

The Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 1